



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9964 (EXTENSION)
FIRST REVISION March 18, 1992

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9964 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to May 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

JUL 18 1994

John I. Roberts
John I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

United Technologies Corporation
San Jose, CA

April 12, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.

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MAR 18 1992

DOT-E 9964
(FIRST REVISION)

1. United Technologies Corporation, Chemical Systems Division, San Jose, California, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a rocket motor for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a rocket motor in a propulsive state, with igniter installed, which exceeds the weight limitation in 49 CFR, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application from United Technologies Corporation dated March 2, 1992, submitted in accordance with 49 CFR 107.105 and correspondence dated February 11 and July 29, 1991.

3. HAZARDOUS MATERIALS (Descriptor and class). Sandia Third Stage Rocket Motor PN: AK-20047-101 (EX-8803189); PN: AK-20047-104 (EX-8909039); PN: AK-20047-105 (EX-8909040); PN: AK-20047-106 (EX-9004223); PN: AK-20047-108 (EX-9107158); or PN: AK-20005-101 (EX-9102047), classed as Class B explosives.

4. PROPER SHIPPING NAME (49 CFR 172.101). Rocket motor.

5. REGULATION AFFECTED. 49 CFR 173.88, 173.92.

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a wooden box shown on Drawing No. 8038-104 dated February 29, 1988 on file with Office of Hazardous Materials Exemptions and Approvals.

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

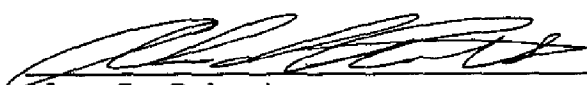
c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire or accident.

d. Each motor carrier used to transport packagings authorized under this exemption must have a "Satisfactory" safety rating as prescribed in 49 CFR Part 385.

9. REPORTING REQUIREMENTS. Any incident involving fire, explosion or loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. March 1, 1994.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 18 1992
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FHWA.